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K. N. Somashekar v. Union of India & Ors.

National Green Tribunal (May 24, 2019)

JUDGMENT

However, as the Honble Expert member, who was part of the composition of this Bench, is demitting office on 08th October, 2017, considering all attending circumstances and urgency in the matter, for the detailed reason that will follow, we are pronouncing the operative portion of the decision today. Operative portion of Judgement Pronounced

2. For the reasons that will follow: The appeal preferred seeking an order to quash the Order No. FEE 136 FLL 2014 dated 21st September, 2016 of the Government of Karnataka/ Forest/ Environment Department- respondent No.3 and to restrain the project activity of the State Government is rejected, in so far as the first relief is concerned. However, while permitting the project activity as envisaged by the State Government of Karnataka, we direct the user agency to proceed with the construction of Yettinahole Phase-I project, only subject to compliance of various conditions and directions in terms of the detailed judgment that will follow and as per law.

3. Accordingly, the Appeal No. 54 of 2016 is disposed of with no order as to cost. Consequently, M.A Nos. 1116 and 1175 of 2016 also stand disposed of.

28. Some of the parties have challenged similar order passed in some other matter before the High Court of Andhra Pradesh and vide order dated 08.11.2017 reported in **2017 SCC online Hyderabad 356** in State of Telangana through its Chief Secretary Kairadabad, Hyderabad Telangana and Another vs M/s Mohammad Qutbudin Vs and Ors, the Honble High Court set aside the order as no detailed order was passed and it was directed to be heard in detail. It was on that basis M.A. 138/2018 was filed by the appellant and it was decided to be reheard in detail.

29. Similarly, O.A. No. 392/2016 was also taken for Judgment and since the judgment was not pronounced, it was also taken for rehearing along with Appeal No. 54/2016.

30. Heard the counsel for the appellant in Appeal No. 54/2016 and the counsel for the petitioner in OA. No. 392/2016 and the counsel for MoEF &CC the Project Proponent and the State of Karnataka in both these cases.

31. In O.A. No. 392/2016 some of the villagers filed application for impleading and the same was allowed and they were impleaded as respondents 8 to 10, as per order in M.A. 261/2015 in O.A. No. 49, 83, and 138/2015 and they filed a separate statement supporting the project.

32. It may also be mentioned here that same appellant namely K.N. Somashekar had filed O.A. No. 117/2016 before Southern Zone Bench of this Tribunal which was transferred to

this Tribunal and renumbered as O.A. No. 393/2016 challenging the same project but later it was dismissed as withdrawn. Another petitioner namely Sh. Purshotam Chettrair filed O.A. 49/2015 before the Southern Zone Bench which was later transferred to this Tribunal and renumbered as O.A. No. 391/2016, and the same was disposed of by this Tribunal by order dated 13.02.2019 as follows: At the outset, the learned counsel for the respondent submits that a similar application, wherein identical prayers were made, has already been decided by the Southern Zone Bench on 30th July, 2015, in Original Application No. 303/2014. Moreover, it has been submitted by the learned counsel for the Respondent that on grant of Stage II clearance under the [Forest Conservation Act](#) in the month of September, 2016 the same has been challenged by a separate appeal (Appeal No.54 of 2016). In view of the above, nothing remains to be adjudicated in this case and therefore the same is dismissed with no order as to cost.

33. The Counsel for the appellant as well as the counsel for the original petitioner have reiterated their contentions in the respective appeal memorandum as well as in the original petition. They also relied on decision reported in [Lafarge Umiam Mining \(P\) Ltd. Vs. Union of India](#), (2011) 7 Supreme Court Cases, 338 and also an unreported decision in [Santosh Bhakti Vs. State of Madhya Pradesh](#) and **T.N. Godavarman Thirumalpad Vs. Union of India & Ors.**

34. The main contention was that the Central Government should not have granted Stage-1 as well as Stage-2 approval under the [Forest \(Conservation\) Act, 1980](#) and the State Government should not have granted the clearance and those things were granted without application of mind and without considering the impact of the project on Western Ghats which is declared as Ecologically Sensitive Area and against the direction given in the notification in this regard. They have further contended that the Ministry should not have observed that this is outside the purview of EIA notification, 2006.

35. On the other hand both the counsel for Project proponent, MoEF & CC and the State of Karnataka contended that they are not entitled to challenge the principle approval granted in 2013 for the project and it is beyond limitation and the appellant also cannot challenge the Stage-1 approval granted for the project as it is beyond limitation. Further Stage-2 approval is only an implementation of Stage-1 approval and only after complying with the conditions Stage-2 approval was granted based on which the Government had granted the clearance under the Forest (Conservation) Act.

36. According to learned counsel for the contesting respondents the appeal as well as the petition are liable dismissed.

37. It is an admitted fact that the present project has been intended to be launched by the Government of Karnataka for providing drinking water in some areas on the eastern part of the State where scarcity is more. It is also an admitted fact that State of Karnataka had submitted an application to the Ministry of Environment, Forest and Climate Change seeking clarification regarding applicability of EIA Notification, 2006 vide their reference no. CF/KN&L/UV/CTA-5/TS10/2012-13/1607 dated 18.10.2012 and subsequent letters dated 20 11 2012 and 26 11 2012 and the MoEF & CC considered the same and passed an

order dated 28.03.2013 which reads as follows: No.J-12011/46/2012- IA-1 Ministry of Environment and Forests Government of India (IA-I Division) Paryavaran Bhawan CGO Complex, Lodhi Road New Delhi-110003 Dated: 28th March, 2013 The Chief Engineer Office of the Chief Engineer Karnataka Neeravari Nigam Ltd Government of Karnataka Upper Bhadra Project Zone Chitradurga (Karnataka) Subject: Drinking Water Supply Scheme to Tumkur Bangalore (Rural), Kolar and Chikaballapur Districts of Karnataka by M/ s Karnataka Neeravari Nigan Ltd Government of Karnataka- Clarification of applicability of EIA, Notification 2006- regarding Sir, This is with reference to your letter no. CE/KNNL/UBPZ/CTA/TA-5/TS10/2012-13/1607 dated 18.10.2012 and subsequent letters 20.11.2012 and 26.11.2012 on the above mentioned project.

2. The said proposal has been examined in the Ministry as well as by the Expert Appraisal Committee (EAC) for River Valley and Hydroelectric Projects in its meeting held on 26-27th December, 2012. The comments and observations of EAC may be seen in the Minutes of the meeting, which are available on the website of this Ministry.

3. The Government of Karnataka explained that the project is to divert excess floodwater from west flowing rivers such as Yattinahole, Kadumanehole, Kerihile and Hongadallahole located in Sakleshpur of Hassan District and utilize the same for drinking water purpose. The total quantity of water to be diverted is 679.483 M cum (24.01 TMC). Out of 24.01 TMC, 14 TMC of water is to be utilized to provide drinking water to Tumkur and Bangalore Rural Districts via gravity channel and 8 lifting stations/pumps and balance

10 TMC is proposed to be utilized in Kolar and Chikkaballapurs Districts which are facing severe shortage of drinking water. A reservoir with 10 TMC is proposed to be built near Deverayanadurga, Tumkur District for this purpose. Water is to be conveyed to the respective districts through rising main of 80 km long and 55 km long to Chikkaballapura and Kolar respectively. Total land requirement is approximately 1200 ha Out of which 50 % of the land is forest land and the rest is agricultural land. Total project cost as mentioned in the letter is Rs. 83.23 Crores.

4. The project neither proposes any hydroelectric power generation nor proposes irrigation use/purpose to developed any command area.

5. It is noted that this is a drinking water supply schemes which does not attract the provisions of EIA Notification, 2006 and its subsequent amendment, 2009 although there are some issues involved like submergence and R & R issues which may be appropriately addressed by the State Government.

6. the Government of Karnataka shall ensure among other things the following steps/measures;

i. Necessary permission/clearance for diversion of forest land for the project shall be obtained from the designated authority before commencement of the project

ii. any other mandatory clearance/ stator permission from any other organisation / department is to be obtained by the project proponent.

iii. An adequate R&R plan may be prepared and implemented wherever necessary, with adequate compensation to the project affected families.

iv. Environmental safeguard measures/management plans may be implemented in a timely manner

v. During the construction period, environmental good practices such as dust suppression/control, noise control etc to be followed.

7. The Ministry of Environment & Forest reserves the right to reconsider the matter, if so warranted.

8. This issues with the approval of the Competent Authority Yours faithfully (B.B. Barman) Director

38. So it is clear from the above that the application was pending from the Central Government in this regard from 2012 onwards and Ministry by above referred letter clarified that since it is a drinking water project, no Environment Clearance is required and it is after getting a report from the Expert Appraisal Committee of River Valley and Hydro-electric projects as per their decision in meeting held on 26-

27 December 2012 and after considering the same that Ministry had clarified that this is outside the purview of EIA notification, 2006.

39. It is also in a way admitted fact that this was challenged by the appellant in Appeal No. 54/2016 by filing a Writ Petition before the Honble High Court of Karnataka as W.P. 12307/2014 and by order dated 02.06.2014 the Honble High Court of Karnataka allowed the petitioner to withdraw the same with liberty to seek alternate remedy before the National Green Tribunal.

40. It is thereafter, he filed O.A. No. 303/2014 before Southern Zone Bench of National Green Tribunal and the Southern Zone Bench by order dated 30.07.2015 dismissed the application on the ground of limitation as it is barred by limitation in view of the provisions under **section 14 (3) of the NGT Act.**

41. Though a review petition was filed against the same, the same was also dismissed by the Tribunal and that has not been further challenged. So as regards the order dated 28.12.2013 of the Ministry, it had attained finality and that cannot be challenged by the appellant in these proceedings.

42. Further as regards the petitioner in O.A. 392/2016 also, it cannot be said that he was not aware of the same and he himself was a party to one of the representation filed before the Ministry against the project in which this aspect has been raised as one of the grounds and that was considered and it is only thereafter that the orders have been passed.

43. So as regards the establishment of the project is concerned by the letter dated 28.03.2013, Central Government has granted in principle sanction for the project and only further compliance of the provisions of other statutes alone were to be considered for implementation of the project.

44. So, the first cause of action for the petitioner in O.A. No. 392/2016 arose during 2013 itself and he did not challenge the same by filing an appeal or by filing an original application.

45. Once the cause of action first arose in 2013 and if no appeal or application has been filed within 30 days or 06 months as the case may be and if it is not filed within that period or at-least filed within the extended period of 60 days provided under the statute under Section 14(3) and Section 16 of the Act, then the same cannot be entertained at a later stage as it is barred by limitation. So there is some force in submission made by counsel for the respondent that original application is barred by limitation and the same is liable to be dismissed on that ground.

46. In the decision reported in **Vimal Bhai and Anr. Vs. Union of India (Appeal No. 7/2012)** of this Tribunal dated 03.11.2012 it has been observed by this Tribunal that what is appealable under **Section 2 and 3 of Forest Conservation Act, 1980 under Section 2 (A) of the above Act read with Section 16 of the National Green Tribunal Act, 2010** is the final order passed by the State Government or other authority authorised by the State Government in this regard and not the stage wise approvals given by the Central Government as required under the [Forest Conservation Act](#) and Rules.

47. So the appeal will not lie against Stage-1 and Stage-2 approvals given by the Central Government for this purpose.

48. Further in the decision reported in **Prafulla Samantara vs. Union of India, 2014 SCC Online NGT 892**, this Tribunal has held that the Stage-1 and Stage-2 approvals will merge with the final order passed by the Government in granting approval and the person who is challenging the ultimate clearance granted by the State Government is entitled to challenge the decision taken by the Central Government for granting Stage-1 and Stage-2 approval as both those approvals will merge with order clearance granted by the Government.

49. So the submission made by the Counsel for MoEF & CC, State of Karnataka and Project Proponent that the appellant in Appeal 54/2016 is not entitled to challenge the Stage-1 approval as it is barred by limitation cannot be accepted as the appellant is challenging the ultimate order of clearance granted by the State Government under the [Forest Conservation Act](#) for converting the forest land to non-forest purpose.

50. As regards the National Water Policy is concerned, it is intended to conserve and preserve the ground water and regulate the same in holistic and scientific manner in critical and other areas so as to make the ground water available to all for drinking purpose. The National Policy also evolves the procedure for conservation of ground water by adopting rain water harvesting in an effective manner and allow the rain water to go to the ground for the purpose of recharge thereby the replenishing of water table can be increased wherever it is depleted drastically.

51. The policy only promotes activities of such nature which are intended for conserving ground water and make it available for drinking purposes in a scientific and regulated manner.

52. So under circumstances any project intended for conserving the ground water level or ground water table in a much affected area by providing a method for recharging the same so as to increase the replenishing of water table so as to increase the available water in that area has to be encouraged.

53. The policy also encourages the method of diverting the flood water in a scientific manner for using the same for ground water recharge to conserve and save the water table so as to provide better drinking water to the public.

54. The project proponent by this project only intends to divert the excess flood water flowing in Nethravathi river and its tributaries during rainy season through canal and pipes so as to fill the dried minor irrigation tanks to a minimum limit to provide the same for water recharging so as to increase the water table in a depleted area.

55. So it cannot be said to be against the National Water Policy as contended by the Counsel for the appellant as well as the applicant in the above cases.

56. There is no dispute regarding the dictum laid down in the decision in [Lafarge Umiam Mining \(P\) Ltd. Vs. Union of India](#) , ([2011](#)) [7 SCC 338](#) and **T.N. Godavarman Thirumalpad Vs. Union of India and Ors.**, M.A. No. 1167 of 2015 (I.A. No. 3620/2013) In W.P. (C) No.202/95.

57. Those cases only say whenever mining activities are to be done in forest area, it must be very carefully considered after getting appraisal done by the Expert body and also considering the impact of those industries in forest.

58. They did not prohibit activities such as Hydro Electrical Project or Drinking Water Project. It is also mentioned in those decisions that authorities must be careful in granting permission for converting forest land for a non-forestry purposes taking it account its public utility and profitable use and also not in much deterioration to Ecology and Environment.

59. Those decisions only reiterates that the Government must take into consideration the Sustainable Development and Precautionary Principle before granting such permission in a judicious manner and it cannot be done arbitrarily without application of mind.

60. The dictum laid down in the decision reported in **Babu Varghese Vs. Bar Council of Kerala**, (1991) **3 SCC 422** is not applicable to the facts of this case.

61. A reading of the orders passed by the Government in this regard while granting Stage-2 approval will go to show that the project proponent had complied with the conditions imposed while granted the Stage-1 approval and only after getting the reports regarding the compliance that the Stage-

2 approval has been granted. The appellant has not produced any scientific data or any documents to show that any of the conditions imposed have not been complied with by the project proponent except stating that the conditions have not been complied with.

62. The recommendations made by the Principal Chief Conservation of Forest for the

project wherein he had opined that user agency may be insisted to obtain necessary clearance under the [Environment \(Protection\) Act, 1986](#) cannot be treated as a condition as such but it is only a recommendation but while forwarding his recommendation, such a specific condition was not imposed in his letter dated 22.07.2015. So it is only recommendary in nature and that need not be binding on the statutory authority which has to grant sanction and this has been considered by the authority. This opinion made by the forest official was ignoring the earlier in principle sanction granted by the MoEF & CC vide letter dated 28.3.2013 wherein it has been specifically mentioned that no environment clearance is required as it is outside the purview of the EIA notification, 2006.

63. Further even under the EIA notification, 2006 only those projects which fall under 1(c) of schedule requires environment clearance which reads as follows:

(i) River Valley Project

(ii) Irrigation projects

(i) > 50 MW hydroelectric power generation;

(ii) > 50,000 ha. of culturable command area

(i) > 25 MW and <50 MW hydroelectric power generation;

(ii) >2000 ha. and <50,000 ha of culturable command area General conditions shall apply
Note-

(i) Category B river valley projects falling in more than one State shall be appraised at the Central Government Level.

(ii) Change in irrigation technology having environmental benefits (e.g., From flood irrigation to Drip irrigation, etc) by an existing project, leading to increase in Culturable Command Area but without increase in Dam. Irrigation system Requirement of EC (a) Minor Irrigation system (<2000 Ha) Exempted (b) Medium irrigation system (>2000 and <10000 Ha) Required to prepare EMP and to be dealt at State Level (B2 category) (c) Major irrigation system (>10,000 to <50,000 ha) Required to prepare EIA/EMP and to be dealt at State Level (B1 category)

64. Since the project proponent had undertaken that they have no intention to convert the same to hydraulic power station or any irrigation purpose and they wanted to use only for drinking water purpose, this will be falling out of the EIA notification, 2006 as rightly observed by the MoEF & CC in their letter dated 28.3.2013. So there is no necessity for obtaining any environment clearances in this case.

65. Further while granting Stage-1 as well Stage-2 approval, the Central Government has considered the report given by the Principal Chief Conservator of Forest, Karnataka and also the report submitted by the Chief Wildlife Warden wherein they have categorically stated that it is not following within the prohibited distance of any National Geological Park or any wildlife sanctuary so as to get clearance from the wildlife board as contended by the counsel for the appellant as well as the applicant in the above cases.

66. Further the impact of the Western Ghats has been considered and only a minimum extent was permitted to be used for non-forest purpose which is required to meet the contingency of providing drinking water to the general public who are affected by the water scarcity.

67. Further the notification relied on by the counsel for the appellant as well as the applicant issued in the year 2015 on the basis of Dr. Kasturirangan Report on Western Ghats also didn't prohibit the project regarding drinking water purpose and only certain categories of activities specified therein alone were prohibited.

68. Further the document produced by the appellant as well as the applicant also will go to show that the government as well as the authorities have called for the necessary documents wherever they required clarification and only after getting those clarifications and the documents that they have granted the approval. So it cannot be said that the authorities have granted the approval without application of mind and without applying the precautionary principle or applying the statutory provisions in this regard as contended by them.

69. Further it was also seen from the documents produced that the Environment Management Plan has been produced by the project proponent prepared by an accredited agency and that was considered by the authorities. Only after satisfaction of the same, that the approval has been granted. Merely because one of the member of the Expert Committee has raised an objection regarding the project who was a member who prepared the report against the project alone is not a ground to come to the conclusion that Regional Empowered Committee has not considered the objections. In fact that was also considered and expert member did not attend the subsequent meeting which is clear from the Minutes of the Meeting of the Regional Empowered Committee and it is only after considering the objection also, that they recommended the project for clearance.

70. Further one of the documents produced by the applicant regarding the objection to this project as it is not feasible by the Indian Institute of Sciences also will go to show that there were difference of opinion regarding the project report prepared by Prof. Ram Prasad and some of the members of the same organisation have supported the project as well as feasible. So it can only be treated as a critical analysis of the project by the members of some association and it can only be treated as opinion of members of organisation and it cannot have any legal impact to rely on the same for the purpose of the coming to the conclusion that it was not a feasible project and no sanction should not have been granted by the authorities for this project.

71. So under the circumstances and in view of the discussion made above, we feel that neither the appellant nor the original applicant had made out any case against the implementation of the project and set aside the sanction granted by the authorities for this project. So both the appeals as well as the original application lack merits and the same are liable to be dismissed.

72. The result both the appeal as well as the Original Application are dismissed.